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## Title 21 —Food and Drugs

### Chapter I —Food and Drug Administration, Department of Health and Human Services

#### Subchapter L —Regulations Under Certain Other Acts Administered by the Food and Drug Administration

#### Part 1240 —Control of Communicable Diseases

#### Subpart D —Specific Administrative Decisions Regarding Interstate Shipments

**Authority:** 42 U.S.C. 216, 243, 264, 271.

**Source:** 40 FR 5620, Feb. 6, 1975, unless otherwise noted.

#### § 1240.60 Molluscan shellfish.

- (a) A person shall not offer for transportation, or transport, in interstate traffic any molluscan shellfish handled or stored in such an insanitary manner, or grown in an area so contaminated, as to render such molluscan shellfish likely to become agents in, and their transportation likely to contribute to the spread of communicable disease from one State or possession to another.
- (b) All shellstock shall bear a tag that discloses the date and place they were harvested (by State and site), type and quantity of shellfish, and by whom they were harvested (i.e., the identification number assigned to the harvester by the shellfish control authority, where applicable or, if such identification numbers are not assigned, the name of the harvester or the name or registration number of the harvester's vessel). In place of the tag, bulk shellstock shipments may be accompanied by a bill of lading or similar shipping document that contains the same information.
- (c) All containers of shucked molluscan shellfish shall bear a label that identifies the name, address, and certification number of the packer or repacker of the molluscan shellfish.
- (d) Any molluscan shellfish without such a tag, shipping document, or label, or with a tag, shipping document, or label that does not bear all the information required by paragraphs (b) and (c) of this section, shall be subject to seizure or refusal of entry, and destruction.

[40 FR 5620, Feb. 6, 1975, as amended at 60 FR 65202, Dec. 18, 1995]